

FLOOR AMENDMENT

HOUSE OF REPRESENTATIVES

State of Oklahoma

SPEAKER:

CHAIR:

I move to amend HB3989

Page	<u>3</u>	Section	<u>1</u>	Lines	<u>17 - 20</u>
					Of the printed Bill
					Of the Engrossed Bill

By deleting all new language appearing on lines 17, 18, 19, and 20; and by inserting in lieu thereof the following language:

"After August 26, 2026, a retail electric supplier shall provide notice to the Oklahoma Corporation Commission that it plans to serve a new electric consuming facility under this large load exception. Together with its notice, it shall include written certification from a licensed professional engineer that the load will reach or is reasonably expected to reach or exceed 1,000 kw of actual metered load during the first 24 months of commercial operation. At the end of the 24 month period, the Commission or the incumbent utility may request verification, and obtain records through a Commission proceeding to determine whether the 1,000 kw level was reached. If that load fails to reach the 1,000 kw load during that 24 months after commercial operation, said retail electric supplier shall pay a penalty of 1% of sales to that electric consuming facility per annum to the incumbent retail electric supplier until such time as it does reach 1,000 kw. The penalty may not be recovered directly from ratepayers or members, and shall be paid from the profits or margins of the utility making the payments. The Corporation Commission shall enforce this penalty upon application of an interested party and may waive the penalty upon a finding that the utility serving said load was not at fault in serving said load which did not reach 1,000 kw for reasons unforeseen when service was extended. This section shall not apply to any such load served before August 26, 2026."

AMEND TITLE TO CONFORM TO AMENDMENTSAmendment submitted by: Trey Caldwell

Adopted: _____

Reading Clerk